

Court No. - 21

Case :- WRIT - C No. - 11523 of 2017

Petitioner :- Baljeet Singh

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Mohammad Umar Khan

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble V.K. Shukla,J.

Hon'ble Ashok Kumar,J.

Baljeet Singh S/o Late Tara Singh is before this Court and his grievance is that respondents be directed to disconnect the electricity connection of the petitioner, situated at village Neemka Police Station Parikshitgarh, Tehsil Mawana, District Meerut.

On the matter being taken up today, Sri Ajay Kumar, Advocate representing Electricity Department, submitted before this Court that till today, petitioner has not at all proceeded to move an application for permanent disconnection in the prescribed format after depositing the requisite amount in question as is provided for, in view of this, writ petition is totally misconceived and devoid of substance and same is liable to be dismissed.

Claim raised, has been needed by Sri Mohammad Umar Khan, learned counsel for petitioner by accepting that as is envisaged under Electricity Supply Act, 2003 read with Electricity Supply Code, 2005, an application for permanent disconnection has not been moved after fulfilling each and every formalities for permanent disconnection. Petitioner in this regard has merely moved an application on 09.02.2017.

Once the petitioner has failed to fulfil the pre-requisite formality for permanent disconnection, as such writ of mandamus cannot be issued. In view of this, the present writ petition is not at all being entertained by us, but certainly we leave it open to the petitioner to move an application for permanent disconnection of electricity connection after fulfilling prerequisite terms and conditions and it is already expected that in case such an application is moved, then same would be dealt with strictly as per law as provided for under Electricity Act, 2003 read with Electricity Supply Code, 2005.

With this, present writ petition in question stands **disposed of.**

Order Date :- 10.3.2017

Shalini